

CV-22-004051 KING, THOMAS vs DOCTORS MEDICAL CENTER OF MODESTO INC – Defendant’s Motion for Summary Judgment – DENIED, in part, GRANTED, in part.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The court previously addressed the issue of the untimeliness of Plaintiff’s Opposition and reiterates its previous finding that the interests of justice do not favor the interpretation of Code of Civil Procedure 437c urged on the Court by Defendant that applies the 2025 statutory response deadlines to Defendant’s Motion for Summary Judgment filed in 2024, and that Plaintiff’s opposition herein may be considered by the Court in the exercise of its broad discretion to consider papers served and filed beyond the deadline on a motion for summary judgment. (CRC 3.1300 (d); Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640). The court finds that triable issues of material fact exist regarding Plaintiff’s cause of action for elder abuse as to decedent’s admission skin condition and the timing of decedent’s wound development, Defendant’s compliance with turning and repositioning protocols, as well as the adequacy of Defendant’s wound assessment and follow-up care and treatment. (Defendant’s Exhibits B, K and M, Plaintiff’s Exhibit A, B and D, Plaintiff’s UMFs 1-8, 11, 17, 19, 21, 22, 25, 26, 27-28; and Plaintiff’s ASUMFs 1,5,6 -9, 12 , 13, 15, 21, 23-24 24,33, 35, 54-55, 58 , 62, 68 , 70, 72-73 , 81, 90-91. Triable issues of material fact also exist regarding decedent’s nutrition, weight loss, and wound healing while in Defendant’s facility. (Defendants USMFs 2, 10-13, 16, 23, 24, 29, 31, 33, 34, 35, 42). In addition, triable issues of material fact exist as to whether Defendant’s care and treatment of the decedent exceed medical negligence and met the standards for elder abuse and neglect. Welf. & Inst. Code § 15610.57; Carter v. Prime Healthcare Paradise Valley LLC, (2011)198 Cal.App.4th 396). Finally, triable issues of material fact exist as to Plaintiff’s ability to establish the required recklessness, oppression, fraud, or malice sufficient to support enhanced remedies under the Elder Abuse Act The court finds that Plaintiff’s UCL cause of action is derivative of the elder neglect allegations and fails as a matter of law. Accordingly, Defendant’s Motion for Summary Judgment is DENIED. Defendant’s Motion for Summary Adjudication of Elder Abuse Claim and Enhanced Remedies is DENIED. Motion for Summary Adjudication of UCL Claim is GRANTED. Defendant’s Evidentiary Objections: OVERRULED

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The court finds that triable issues of material fact exist regarding Plaintiff’s cause of action for elder abuse as to decedent’s admission skin condition and the timing of decedent’s wound development, Defendant’s compliance with turning and repositioning protocols, as well as the adequacy of Defendant’s wound assessment and follow-up care and treatment. (Defendant’s Exhibits B, K and M, Plaintiff’s Exhibit A, B and D, Plaintiff’s UMFs 1-8, 11, 17, 19, 21, 22, 25, 26, 27-28; and Plaintiff’s ASUMFs 1,5,6 -9, 12 , 13, 15, 21, 23-24 24,33, 35, 54-55, 58 , 62, 68 , 70, 72-73 , 81, 90-91. Triable issues of material fact also exist regarding decedent’s nutrition, weight loss, and wound healing while in Defendant’s facility. (Defendants USMFs 2, 10-13, 16, 23, 24, 29, 31, 33, 34, 35, 42).

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Paradise Valley LLC, (2011)198 Cal.App.4th 396).

Finally, triable issues of material fact exist as to Plaintiff's ability to establish the required recklessness, oppression, fraud, or malice sufficient to support enhanced remedies under the Elder Abuse Act

The court finds that Plaintiff's UCL cause of action is derivative of the elder neglect allegations and fails as a matter of law.

Accordingly, Defendant's Motion for Summary Judgment is DENIED.

Defendant's Motion for Summary Adjudication of Elder Abuse Claim and Enhanced Remedies is DENIED.

Motion for Summary Adjudication of UCL Claim is GRANTED.

Defendant's Evidentiary Objections: OVERRULED